

Generally, it is an abuse of discretion for a court to deny leave to amend where there is any reasonable possibility that a Plaintiff can state a good cause of action. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349.) The Court finds, from the nature of the claims and the arguments asserted, a reasonable possibility that Bright Power can amend to state one or more claims sounding in fraud. For this reason, the demurrer is SUSTAINED WITH LEAVE TO AMEND.

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****at 9:30 a.m.****

McGrew Behavior Intervention Services, Inc. v. Israel Delgado

25CV001274

ATTORNEYS FEES

TENTATIVE RULING: Mr. Delgado’s request for an award of attorneys’ fees is GRANTED IN PART. Mr. Delgado is awarded attorneys’ fees and in the amount of \$4,163.50.

On November 3, 2025, Defendant Israel Delgado specially moved for an order striking the Verified Complaint, as a strategic lawsuit against public policy (SLAPP) pursuant to Code of Civil Procedure section 425.16 (Section 425.16 or Anti-SLAPP Statute). Through the supporting memorandum filed in support of the Motion, Mr. Delgado “request[ed] reasonable fees upon prevailing.” (See Support Memo at 7:3-4.)

By Minute Order of July 30, 2026, the Court found that the Complaint was a SLAPP and ordered it stricken pursuant to Section 425.16. The Court continued the request for an award of attorneys’ fees to this date.

With exceptions having no apparent relevance here, “a prevailing defendant on a special motion to strike shall be entitled to recover that defendant’s attorney’s fees and costs.” (Code Civ. Proc., § 425.16, subd. (c)(1) (Section 425.16).) “Thus, under Code of Civil Procedure section 425.16, subdivision (c), any SLAPP defendant who brings a successful motion to strike is entitled to mandatory attorney fees. The fee-shifting provision was apparently intended to discourage such strategic lawsuits against public participation by imposing the litigation costs on the party seeking to ‘chill the valid exercise of the constitutional rights of freedom of speech and petition for the redress of grievances.’ [Citation.]” (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1131.)

The Court finds that Mr. Delgado is a prevailing defendant pursuant to Section 425.16, subdivision (c)(1). (See Minute Order of July 30, 2026.) The Court further finds that the hourly rate charged by counsel is consistent with those typically charged in the community for similar work. (See Declaration of Mohammed Y. Kashef at ¶ 9.) The Court finds that 10.8 hours is a reasonable amount of time required to review the Complaint in the action and prepare the instant Motion. (See *id.* at ¶ 4.) Moreover, the Court finds the \$60.00 filing fee and \$73.50 service fee are reasonable and appropriate. (See *id.* at ¶¶ 12 and 13.) However, the Court does not find the evidence related anticipated future costs sufficiently certain to meet Defendant’s burden of proof as to those fees. (See *id.* at ¶¶ 5-7.) Thus, the evidence before the Court supports an award of fees actually incurred in the amount of (\$375/hr x 10.8 hrs =) \$4,050 plus costs of (\$60.00 + \$73.50 =) \$113.50.

Based on the foregoing, Mr. Delgado's request for an award of attorneys' fees is GRANTED IN PART. Mr. Delgado is awarded attorneys' fees in the amount of \$4,050.

PROBATE CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

In the Matter of Revocable Trust of Beverly J. Kastan est. 3/11/2011 23PR000045

- [1] CONFERENCE STATUS
- [2] PETITION FOR ORDER INVALIDATING TRUST AND DETERMINING OWNERSHIP OF TRUST PROPERTY BY ESTATE (filed February 16, 2023)
- [3] OBJECTIONS TO ACCOUNTING OF TRUSTEE; PETITION FOR ORDER DIRECTING TRUSTEE TO FILE AMENDED ACCOUNTING; AND PETITION FOR ORDER DIRECTING ATTORNEY-IN-FACT TO FILE ACCOUNTING (filed October 10, 2023)

APPEARANCE REQUIRED

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Estate of Marilyn Louise Quint

23PR000119

FIRST AND FINAL REPORT OF ADMINISTRATOR AND PETITION FOR ITS SETTLEMENT, FOR ALLOWANCE OF STATUTORY COMPENSATION TO ADMINISTRATOR AND ATTORNEYS AND FOR FINAL DISTRIBUTION

TENTATIVE RULING: The matter is CONTINUED to September 17, 2026 at 8:30 a.m. in Dept. B to allow Administrator to address the following issue. There appears to be an error in Schedule C of Exhibit B attached to the Petition. (See Pet., PDF pp. 19-20.) Schedule C indicates a total amount of disbursements of \$583,909.23 (= \$564,466 on p. 19 + \$19,443.23 on p. 20). However, the Petition and Summary of Account both indicate a total amount of disbursements of \$592,531.99. (See Pet., p. 3 ln. 9, p. 13 (Exh. B).)

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Conservatorship of Dustin Farfan Hernandez

25PR000111

REVIEW – 1ST YEAR

TENTATIVE RULING: After a review of the matter, the Court finds the Co-Conservators are acting in the best interest of the Conservatee. Thus, the matter is set for a Review – Biennial hearing in two years, on August 22, 2028, at 8:30 a.m. in Dept. B. The Court Investigator shall prepare a biennial investigator report for the next hearing date. The Clerk is directed to send notice to the parties.